

and still subject to the tender requirement. (*Id.* at p. 112 [“[A]s a condition precedent to an action by the borrower to set aside the trustee’s sale on the ground that the sale is voidable because of irregularities in the sale notice or procedure, the borrower must offer to pay the full amount of the debt for which the property was security.”].)

Plaintiff also argues that a question of fact remains as to whether the sale was properly conducted, specifically arguing that there is a dispute of fact as to whether Plaintiff received notice of his fourth loan modification denial. While it is undisputed that Nationstar sent a letter denying Plaintiff’s fourth application for a loan modification (Nationstar Decl. at ¶ 27, Exs. 20, 21), Plaintiff testified that he did not receive the letter (Pomeroy Decl. at Ex. FF [Gupta Depo.] at 97:4) and counsel for Plaintiff also submitted testimony that she did not receive the denial letter (Shapero Decl. at ¶ 8.) Construing the evidence in favor of Plaintiff, at best this presents a “mere technical violation[] of the foreclosure process,” if that. Indeed, the Court presumes that Plaintiff had knowledge of Nationstar’s denial given that he filed his Complaint on June 8, 2023 and moved for a temporary restraining order to enjoin the foreclosure sale. Plaintiff has not demonstrated a genuine dispute of material fact with respect to the procedural regularity of the foreclosure process.

Defendant is entitled to summary adjudication on Plaintiff’s claim for wrongful foreclosure.

Business & Professions Code § 17200

Finally, Defendant moves for summary adjudication on Plaintiff’s 17200 claim on several grounds.

California’s unfair competition law (UCL), Cal. Bus. & Prof. Code § 17200 *et seq.*, prohibits unfair competition, which is defined as any unlawful, unfair or fraudulent business act or practice. § 17200. A claim may be brought under the UCL by a person who has suffered injury in fact and has lost money or property as a result of unfair competition. (Bus. & Prof. Code § 17204.) Therefore, to establish standing under the UCL, a plaintiff must (1) establish a loss or deprivation of money sufficient to qualify as injury in fact, *i.e.*, economic injury, and (2) show that the economic injury was the result of, *i.e.*, caused by, the unfair business practice that is the gravamen of the claim. (See *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 337 (“*Kwikset*”).) Restitution is the only form of damages available under the UCL. (See *Korea Supply Co. v. Lockheed Martin Corp.* (2002) 29 Cal.4th 1134, 1147.)

Here, the FAC specifically predicates Plaintiff’s 17200 claim on the alleged violations of HBOR in his first and second causes of action. (FAC at ¶ 52.) However, Plaintiff explicitly withdrew those causes of action in opposition. Furthermore, as discussed above, he has not demonstrated a genuine dispute of material fact with respect to his wrongful foreclosure claim.

Defendant is entitled to summary adjudication on Plaintiff’s UCL claim.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

5. 9:00 AM CASE NUMBER: C24-02221
CASE NAME: JOHN ROE A.H. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT, PUBLIC ENTITY
***HEARING ON MOTION FOR DISCOVERY SILICON VALLEY MONTEREY BAY, SCOUTING AMERICA'S COMPLIANCE WITH SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS**
FILED BY: ROE A.H., JOHN

TENTATIVE RULING:

Plaintiff John Roe A.H. seeks to compel compliance with a business records subpoena served on Silicon Valley Monterey Bay, Scouting America (SVMBSA). The Court received no opposition by any Defendant or from SVMBSA.

This case involves alleged childhood sexual abuse by a teacher. This teacher was previously involved with SVMBSA, and so Plaintiff has sought records relating to allegations of sexual abuse against minors while involved with SVMBSA.

The subpoena sought “(1) all employment and volunteer records, including reprimands, complaints, claims, payroll records, commendations, recommendations, disciplinary actions, termination or dismissal records, approvals, applications, communications, documents, reviews, notations, personnel files, demands, performance evaluations, credentials, and photographs; and (2) all yearbooks, photographs, troop lists, or other documents reflecting programs in which Guinto participated from 2005 through 2010.”

SVMBSA responded by producing “screenshots of limited personnel records, a civil complaint, and a 2008 Santa Clara County Council roster.” SVMBSA failed to respond to meet and confer efforts.

SVMBSA’s response was clearly deficient. The Court has concerns that aspects of the second request may implicate privacy rights of third parties, including minors, and so cannot compel full compliance. Otherwise, however, SVMBSA must produce all relevant, responsive documents without redactions. In other words, SVMBSA must produce all documents called for in the subpoena, but may redact names and pictures of minors, subject to further discussions involving a protective order if Plaintiff provides compelling reasons for limited discovery of such information.

Plaintiff also seeks sanctions in the amount of \$3,060.00. The proffer for this amount is reasonable and will be granted.

6. 9:00 AM CASE NUMBER: C25-00481
CASE NAME: MAURO OILVA VS. AMERICAN HONDA MOTOR CO., INC.
***HEARING ON MOTION IN RE: STRIKE OR TAX COSTS**
FILED BY: AMERICAN HONDA MOTOR CO., INC.

TENTATIVE RULING:

Defendant American Honda Motor Co. (Honda) moves to strike, or in the alternative, tax costs. Plaintiff Mauro Oilva accepted Honda’s offer to compromise pursuant to Code of Civil Procedure section 998. Plaintiff has since filed a Memorandum of Costs in the amount of \$2156.60 and a Motion for Attorney’s Fees, which is set for hearing on September 17, 2026.

Honda disputes five costs:

- (1) \$5.95 in filing and motion fees, for the Notice of Settlement